

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS**

LARRY CRENSHAW,	)	
	)	
Plaintiff,	)	
v.	)	Case No.
	)	
GEICO INDEMNITY COMPANY,	)	
	)	
Defendant.	)	
_____	)	

COMPLAINT

COMES NOW the Plaintiff, by and through counsel, Christopher J. Omlid and Richard W. James of DeVaughn James Injury Lawyers, and for his claims against the Defendant, alleges and states:

1. The Plaintiff is a citizen and resident of Kansas.
2. This Court has proper venue and jurisdiction over the persons and subject matter.
3. Defendant, GEICO Indemnity Company is a stock fire and casualty insurance company domiciled in the State of Maryland but authorized to conduct business in the State of Kansas. It may be served through the Kansas Insurance Commissioner at 420 S.W. 9th, Topeka, Kansas 66612-1678.
4. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship. The matter is in excess of the sum of Seventy-Five Thousand and no/100 Dollars (\$75,000.00) exclusive of interest and costs.

5. At all times relevant herein, Plaintiff was insured under an automobile liability policy with Defendant, Policy No. 4309982827, that contained uninsured motorist benefits in the amount of \$100,000.00. As such, the available uninsured motorist coverage for Plaintiff should be \$100,000.00.
6. On or about November 21, 2018, an unknown uninsured motorist, negligently operated a motor vehicle causing it to collide with a vehicle being operated by the Plaintiff. Following the collision, the unknown driver immediately fled the scene of the accident and abandoned the vehicle he was operating.
7. Specifically, the uninsured motorist was careless and negligent as follows:
 1. Fleeing the scene of the collision;
 2. Failure to maintain a proper lookout;
 3. Failure to drive with reasonable care;
 4. Failure to maintain control of a motor vehicle;
 5. Careless driving;
 6. Careless operation of a motor vehicle; and
 7. Inattentive operation of a motor vehicle.
8. Plaintiff provided Defendant with a time-limited settlement demand on or about April 11, 2019, on this clear liability collision with objective injuries and damages. As of June 20, 2019, Defendant has refused to make any reasonable settlement offer to Plaintiff under the terms of the uninsured motorist coverage and since Defendant failed to pay without just cause or excuse. To date the only settlement offer made was for \$8,689.84.

9. Since the Defendant failed to pay without just cause or excuse, pursuant to K.S.A. 40-256, Defendant is liable for Plaintiff's attorney fees.
10. The policies of insurance available to Plaintiff and this motor vehicle are policies given to insure property in this state against loss by fire, tornado, lighting or hail, and as such, the Plaintiffs are allowed mandatory attorney fees pursuant to K.S.A. 40-908.
11. As a result of the negligence of the uninsured motorist, Plaintiff sustained personal injuries. Plaintiff's damages include past medical expenses, future medical expenses, past and future economic damages and past and future non-economic damages including pain, suffering and mental anguish.

WHEREFORE, Plaintiff requests judgment against Defendant for an amount in an amount in excess of SEVENTY-FIVE THOUSAND (\$75,000.00), together with the costs incurred herein; attorney fees under K.S.A. 40-256 and K.S.A. 40-908; pre-judgment interest and for such other and any further relief this Court deems fair, just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

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DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

COMES NOW the Plaintiff and demands a Pretrial Conference and a Trial by jury of eight (8) persons in this matter.

DESIGNATION OF PLACE OF TRIAL

COMES NOW the Plaintiff and designates Wichita, Kansas as the place for Trial in this matter.

Respectfully submitted,

DeVaughn James Injury Lawyers

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